

The complaint

Mr K complains about UK Insurance Limited's (UKI) handling of a storm damage claim he made on his home insurance policy.

What happened

In July 2019, following heavy rainfall, Mr K noticed water had got into his home through the roof and caused damage. He got in touch with UKI to make a claim for the external and internal damage.

UKI agreed to cover the cost of a temporary roof fix and appointed a loss adjuster to inspect the damage to Mr K's home. The loss adjuster didn't think there was any internal damage and wasn't able to inspect the roof. Mr K was unhappy with the loss adjuster's handling of his claim and complained.

So UKI appointed a second contractor to investigate the damage to Mr K's property. The first time they visited, they didn't inspect the roof, so they had to make a return visit. The contractor didn't think the roof damage was down to the heavy rainfall. They found it was due to wear and tear, which isn't covered by the policy. On this basis, UKI turned down the claim for Mr K's roof damage.

Mr K was unhappy with the schedule of works that'd been prepared to put right the internal damage and he was unhappy with the communication he'd had from UKI. To move the claim forward, UKI appointed a personal insurance agent (PIA) to deal with Mr K's internal damage claim. He agreed a settlement amount for the internal repairs and Mr K's claim was cash settled.

UKI also paid Mr K £150 compensation for the distress and inconvenience its handling of his claim had caused him. Mr K remained unhappy with how UKI had handled the claim and also that it had turned down his claim for the roof damage. So he asked us to look into his complaint.

Ultimately, our investigator didn't think Mr K's complaint should be upheld. She accepted there'd been wet storm conditions around the time of the claim. But she thought UKI had provided enough evidence to show the main cause of the damage to Mr K's roof was wear and tear. This is specifically excluded by the policy. And she thought the £150 UKI had paid Mr K was enough to put things right for the service he'd received.

Mr K disagreed with our investigator. He said the PIA had told him the roof works were covered. He said the water leaking in had come from a different roof area to the area identified as suffering from wear and tear. He told us he's had to take time off work and live in a water-damaged house. Mr K feels UKI should pay for another roof report to check the cause of the damage.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I think UKI has treated Mr K fairly. I'll explain why.

I'll look at UKI's decision to turn down Mr K's roof claim and the handling of his internal damage claim separately.

The roof damage claim

When we look at complaints about storm damage, there are three questions that we need to ask:

- Were there storm conditions on or around the date of the claim?
- Is the damage consistent with storm damage?
- Were the storm conditions the main cause of the damage?

If the answer to any of these questions is "no" then the claim won't succeed.

Were there storm conditions on or around the date of the claim?

UKI accepts there was very heavy rainfall around the date of Mr K's claim. I've checked the local weather reports and I can see 94mm of rainfall fell on the date of Mr K's claim. So I agree there were wet storm conditions on or around the date of Mr K's claim.

Is the damage consistent with storm damage?

Internal ingress of water getting in through a roof can be consistent with storm damage. And the overflowing of gutters might be consistent with very heavy rainfall over a short period of time. I haven't seen enough evidence of damage to the roof itself to suggest it was consistent with storm damage though.

Were the storm conditions the main cause of the damage?

UKI says the damage to Mr K's roof isn't covered because it was down to wear and tear and faulty workmanship. Mr K's policy doesn't cover claims that are due to these causes. So I need to decide if the damage is most likely down to the wet storm conditions or down to something the policy doesn't cover

I've looked closely at the extract from the contractor's report that UKI has sent me, together with the photos the contractor took. Its report says:

"The roof is covered in reflective stone chippings, these have not been used for 15-20 years...We have scraped back the chippings and found slight faults with the green mineral up stand that goes under the roof tiles. Basically because there is no tilt fillet timber fitted, the felt is cracking in places and because of the chippings, the water cannot flow off the roof. Also...there are two courses of tiles on top of each other. The damage is down to wear and tear/poor workmanship and not due to storm."

It seems to me that UKI's contractors undertook a full inspection of the roof and photographed what they'd observed. So I think UKI was reasonably entitled to rely on the contractor's findings when deciding whether or not the roof damage claim was covered.

I appreciate Mr K says the PIA told him the roof damage would be covered. The investigator asked UKI for a copy of the PIA's report. UKI said the PIA had been dealing with the internal

damage claim and hadn't inspected the roof. So there wasn't a report it could send us with the PIA's findings.

Mr K's also told us the damage wasn't in the same area as the bit of roof identified as suffering from wear and tear. But he told us he can't afford to get a surveyor to provide an independent report which supports this. So the only expert roofer evidence I have is from UKI's contractor. Without any expert evidence to counter UKI's findings, I'm persuaded that the most likely cause of the roof damage was wear and tear. I think it's most likely the heavy rainfall simply highlighted existing problems with the roof.

Overall, I don't think the storm was the main cause of the damage to Mr K's roof. So I think it was fair for UKI to turn down Mr K's roof damage claim.

The internal damage claim

It's clear that there were some issues with the way UKI initially handled Mr K's internal damage claim. The first loss adjuster didn't think there was enough evidence of internal damage and I can understand how frustrating this must've been for Mr K. I also understand that there was some dispute about the schedule of works that were needed to put things right in Mr K's property. This must've caused additional worry to Mr K at an already stressful time.

But I have to bear in mind how UKI responded to Mr K's concerns. It recognised how unhappy he was with how its contractors had handled his claim and appointed a PIA to take full responsibility for it. The PIA was able to agree an acceptable settlement figure with Mr K for the internal damage. And I was pleased to see he included a 50% contribution towards undamaged items which were part of a matching set. A cash settlement was agreed a month after Mr K first made the claim.

Looking at the claim in the round, while I do accept there were some issues with UKI's initial handling of the claim and its communications, it swiftly put things right. Unfortunately, it isn't unusual for a policyholder to suffer some degree of inconvenience following a claim and I can't fairly hold UKI responsible for the water damage Mr K's home sustained. I think that UKI settled Mr K's internal damage claim fairly and promptly. And I think it responded reasonably to his concerns about its contractors.

So I think £150 is fair compensation for the trouble and upset its handling of his claim at the start caused him. This means I won't be telling UKI to pay him anything more.

My final decision

For the reasons I've given above, my final decision is that I don't uphold Mr K's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr K to accept or reject my decision before 2 June 2020.

Lisa Barham
Ombudsman